REFUGEES AND REFUGEE LAW

Territory is an important element of state. Crossing over territory leading to forced or voluntary migration, legal or illegal migration, is central to securing the borders of the states. ‘Territorialization’ is central towards immigration policies of states, especially when it comes to migration issues. Donald Trump, for example, proposed building of a Wall along the US-Mexico border to curb illegal immigration from Mexico. He also many a times came down upon H-1B visas relating to granting of work permit to foreign workers. Trump also proposed policies of banning Muslim immigration from areas with history of terrorism. This clearly shows how states are sensitive towards migration issues and are moving towards tough immigration regimes.

If we consider refugees and their entering into the territory of another state either in groups or individually then it can be said that it has become the centre of international politics and policy making of states. The important element involved in this category of migrants being classified as ‘refugees’ is ‘crossing over international boundary’. Refugees mostly are cases of forced migration seeking ‘asylum’ and protection of the ‘country of destination’ and fleeing the ‘country of origin’. The Convention relating to the Status of Refugees, 1951 was adopted to address the status of persons outside their country and their rights and freedoms without discrimination.

The important causes of behind the adoption of this Convention have their roots in the World Wars I and II. In the aftermath of the World War I (WWI) and formation of the League of Nations, 1919, several attempts were made to tackle refugee problem in Europe. Refugees, especially from Russia, making inroads into Europe became a concern of the international community. First attempt made towords this was an appointment of a High Commissioner for Refugees whose name was Fridtjof Nansen* (Nansen Passport). Following the outbreak of the Second World War (WWII) and still the presence of League of Nations, several Conventions were adopted by the League to control the refugee flow from Germany (mostly Jews).